

9:00 AM

Line 2

24-CIV-05539 ERAY ERBAY VS. HUSEYIN TOSUN, ET AL

ERAY ERBAY
HUSEYN TOSUN

BRIAN M CARTER
SUSAN E. BISHOP

Cross-Defendant's Motion for a Continuance of Trial and Related Dates

TENTATIVE RULING:

Cross-Defendant Muslum Caferoglu moves for a trial continuance in this matter. Cross-Complainants Huseyn Tosun and Sema Tosun oppose the motion.

The underlying employment action in this case, filed by Plaintiff Eray Erbay, has been resolved. The Tosuns' Cross-Complaint is now the only operative pleading seeking relief in this action. The cross-complaint asserts contractual indemnification, equitable indemnification, and contribution against Caferoglu.

Caferoglu's motion to continue trial is GRANTED. Parties may appear to confirm availability for the dates stated below.

Caferoglu's request for judicial notice of the Cross-Complaint (Ex. 1), his Answer (Ex. 2), Cross-Complainants' Motion to Quash (Ex. 3), and Cross-Complainants' Motion for Summary Adjudication (Ex. 4) is GRANTED.

Cross-Complainants' request for judicial notice of this Court's pre-trial order No. 1 (Ex. A), This Court Minute Order re: April 23, 2026 IDC (Ex. B), and Cross-Complainants' Motion for Summary Adjudication (Ex. C.) is GRANTED.

Legal Standard

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. Rules of Court, rule 3.1332, subd. (c).) Circumstances that may indicate good cause include:

- (1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;
 - (2) The unavailability of a party because of death, illness, or other excusable circumstances;
 - (3) The unavailability of trial counsel because of death, illness, or other excusable
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circumstances;

- (4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;
- (5) The addition of a new party if:
 - (A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or
 - (B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;
- (6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or
- (7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(Ibid.)

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination, which may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer as a result of the continuance;
- (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
- (7) The court's calendar and the impact of granting a continuance on other pending trials;
- (8) Whether trial counsel is engaged in another trial;
- (9) Whether all parties have stipulated to a continuance;
- (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and
- (11) Any other fact or circumstance relevant to the fair determination of the motion or application.

(Cal. Rules of Court, rule 3.1332, subd. (d).)

Analysis

Caferoglu argues that he has been unable to obtain banking records that are essential to this case, despite diligent efforts. Caferoglu seeks to obtain by subpoena bank records establishing that he did not have check-writing authority when employed at Stamp Bar and Grill, owned by the Zeyher Corporation.

Cross-Complainants allege that Caferoglu had an ownership interest in Zeyher and an exerted significant authority in the management of Stamp Bar and Grill, including the authorization to issue checks on Zeyher's behalf. (Cross-Defendants' RJN, Ex. C, Motion for Summary Adjudication ("MSA"), at p. 2.)

Caferoglu argues that the bank records are essential to his case. The subpoena demanding the records is the subject of a motion to quash, scheduled to be heard on September 4, 2026. This Court previous quashed a subpoena or those records on February 10, 2026, on the grounds that the subpoena was overbroad. Separately, Cross-Complainants' motion for summary adjudication, filed on April 20, 2026, is also scheduled to be heard on September 4, 2026. Caferoglu argues that continuance is necessary to allow him to obtain the records before trial and before the MSA, and depose Cross-Complainants, whose depositions have been held up by his inability to obtain the bank records.

Grounds for granting a trial continuance include a party's inability to obtain essential testimony, documents or other material despite diligent efforts. (Cal. Rules of Court, rule 3.1332, subd. (c)(6).) On a motion to continue trial, evidence is essential if the material is not cumulative, can be obtained within a reasonable time, and the facts could not otherwise be proven. (*See, e.g., Jensen v. Superior Ct.* (2008) 160 Cal.App.4th 266, 270.)

Here, the Court finds that the bank records in question are potentially relevant to establishing the scope of Caferoglu's authority in his role related to Stamp and Zeyher, and on the current record, the issue of his check-writing authority cannot be proven by other means.

Caferoglu has been diligent in seeking the bank records at issue. He initially subpoenaed the records over one year ago, on July 8, 2025. Cross-Complainants moved to quash the subpoena and, given the ongoing backlog on the Court's law and motion calendar, the motion was not heard until early 2026. On February 10, 2026, the Court quashed the subpoena on grounds that it was overbroad. On February 26, 2026, Caferoglu served a revised subpoena for the bank records, narrowing the scope of the records sought. On March 25, 2026, Cross-Defendants again moved to quash the subpoena, and a hearing was set for September 4, 2026, more than five months out. Caferoglu then contacted opposing counsel on April 3, 2026, and requested a continuance of trial, which opposing counsel rejected. On April 20, 2026, Cross-Complainants moved for summary adjudication regarding the issue of whether Caferoglu is obligated under the June 12, 2024 settlement agreement to indemnify Cross-Complainants for 50% of defense costs and liability incurred in the *Erbay* action. Three days later, on April 23, 2026, Caferoglu filed the instant motion to continue trial.

Under those facts, Caferoglu has been generally diligent in seeking the outstanding financial records at issue in this motion. The Court does note there was no ex parte application to advance the motion to quash hearing, which would have been expected.

Nevertheless, the factors under rule 3.1332, subd. (d), weigh in favor of Caferoglu. Trial is set to begin on November 2, 2026. Caferoglu's motion was not made in close proximity to trial. Significantly no previous continuance has been granted, nor has trial otherwise been delayed. The Cross-Complaint was filed less than two years ago, on October 29, 2024. The length of the requested continuance is only six months. On the current record, Caferoglu cannot obtain proof that he did not have check-writing authority by other means than the bank records at issue here. Further, beyond the delay itself, there has not been an adequate showing that a continuance would otherwise prejudice Cross-Complainants.

Accordingly, Cross-Defendant Caferoglu's motion to continue trial is GRANTED.

The current trial date of November 2, 2026, and current Mandatory Settlement Conference and Pretrial Conference, are all VACATED. All related pretrial deadlines, including discovery cut-offs, shall move with the new trial date.

Trial in this matter continued to May 3, 2027 at 2:00 p.m. in Dept. 20 / Courtroom L.

Pretrial Conference is continued to April 19, 2027 at 10:00 a.m. in Dept. 20 / Courtroom L.

Mandatory Settlement Conference is continued to March 19, 2027 at 9:00 a.m., subject to change per the assigned MSC department.

The Court further ORDERS that the hearing for Cross-Defendants' MSA is continued to January 8, 2027 at 9:00 a.m. in Dept. 20 / Courtroom L. Deadlines for the opposition and reply briefs to the MSA shall move with the new hearing date.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 3

25-CIV-01784 TODD ANDREW RAE, ET AL VS. GENERAL MOTORS, LLC.

TODD ANDREW RAE
GENERAL MOTORS, LLC.

LARRY W CHAE
KRISTEN ALLISON

Defendant's Demurrer to Plaintiff's First Amended Complaint

TENTATIVE RULING:

The Demurrer brought by Defendant General Motors, LLC ("GM") is OVERRULED.

Background

Per the allegations of the First Amended Complaint ("FAC"), on or about April 16, 2019, Plaintiffs entered into a warranty contract (FAC, Exh. A) with Defendant GM regarding a 2019 Chevrolet Silverado 1500 (the "Vehicle") which was manufactured or distributed by Defendant GM, and which Plaintiffs purchased from Defendant GM's authorized dealer. The Vehicle bears defects and nonconformities to the warranty which manifested during the warranty period, including defects in its electrical systems and transmission, *inter alia*, despite Plaintiffs' diligently maintaining the Vehicle and presenting it for repairs when nonconformities manifested or repairs were required. Each time Plaintiffs picked up the Vehicle from Defendant GM's repair facilities, Defendant GM's technicians represented that the Vehicle had been repaired or was working as designed. Given these misrepresentations, Plaintiffs had no way of uncovering Defendant GM's deception regarding the Vehicle's defects.

The Vehicle's defects and nonconformities impair its use, value, or safety, and render its value worthless or *de minimis*. Despite its affirmative duty to do so under the Song-Beverly Act, Defendant GM refuses to replace or repurchase the Vehicle after a reasonable number of failed attempts to repair its defects.

Defendant GM demurs generally to the fourth and fifth causes of action of the FAC, asking that leave to amend be denied.

Legal Standards for Demurrer

Code of Civil Procedure section 430.30 provides that an objection to a complaint may be made via demurrer when the ground for that objection appears on the face of the complaint (or via judicial notice, which is not sought here). (Code Civ. Proc., § 430.30, subd. (a).) Code of Civil Procedure section 430.50 provides that a demurrer to a complaint may be taken to "any of the causes of action stated therein." (Code Civ. Proc., § 430.50, subd. (a).)

Code of Civil Procedure section 430.10 sets forth eight possible grounds for demurrer, including that "[t]he pleading does not state facts sufficient to constitute a cause of action" (Code Civ. Proc., § 430.30, subd. (e)). A demurrer founded on section 430.10, subdivision (e), is called a "general demurrer." (*McKenney v. Purepac Pharm. Co.* (2008) 167 Cal.App.4th 72, 77.) Accordingly, "[a]
